

Vijay Kumar v. State of U.P. — instalments of undisputed electricity dues

High Court of Judicature at Allahabad · Division Bench · 27 May 2019 · WRIT - C No. - 18284 of 2019 · **Writ disposed of; four equal monthly instalments of undisputed dues directed under Supply Code 6.4; any penalty left to appeal; coercive measures stayed if instalments paid on time.**

HEADNOTE

Where the consumer did not dispute electricity dues and sought to pay in easy instalments, and the licensee raised no objection because clause 6.4 of the U.P. Electricity Supply Code, 2005 provides for instalment payment, the Division Bench directed four equal monthly instalments commencing 27 June 2019, barred coercive recovery so long as instalments were paid on time, and left any penalty to appeal before the appropriate authority.

FACTUAL SUMMARY

Vijay Kumar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and electricity department respondents over demanded electricity dues. He did not dispute the amount and stated that he was ready and willing to deposit it in easy instalments. Counsel for the contesting respondents submitted that clause 6.4 of the Electricity Supply Code, 2005 provides for payment of electricity dues in instalments and had no objection to accepting the amount that way.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.4

instalment payment of undisputed electricity dues

HOLDING

Where the consumer does not dispute the demanded electricity dues and seeks to pay in instalments, and the licensee raises no objection, clause 6.4 of the U.P. Electricity Supply Code, 2005 permits payment to be scheduled in equal monthly instalments; so long as those instalments are deposited on time, no coercive measures may be taken, while failure to pay any instalment on time leaves the licensee free to proceed in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — PENALTY, IF ANY

Left open to an appeal before the appropriate authority; the Court did not decide liability or quantum. ¶ 1